CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. EBE3B5C04
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
CONFIDENTIAL - SUBJECT TO PROTECTIVE ORDER

From: Timothy L Ray <timothy.ray@enron.com>
Sent: Fri, 21 Jul 2000 03:11:00 -0700 (PDT)
To: Colleen Sullivan <colleen.sullivan@enron.com>
Cc: Dan Jenkins <dan.jenkins@enron.com>, Chris Germany <chris.germany@enron.com>, Scott Goodell <scott.goodell@enron.com>, Michael H Garred <michael.garred@enron.com>, Dave Scott <dave.scott@enron.com>
Subject: Assignment

We need to talk about issues surrounding assignment of CES assets. I will need someone to champion things on your end. Our deal is closing on 7/31/00. All activity related to August will accrue to New Power. I.e. all Aug. hedges should settle with New Power. All Aug invoices should be rendered to New Power. We are assuming the Master Physical and Financial Swap agreements and the mass market portions of the Asset Assignment Agreement and related Gas purchase agreement and amendments as discussed.

We have had some discussion over things that we both want relative to the changeover but have not formalized anything.(monthly demand fee, honor storage and physical positions, BGE capacity control, right to seek other markets for pricing, etc.) The most pertinent item should be having ENA quickly review and approve assignment of the master agreements. Then we will need to be recognized as the holder of all underlying transactions. Can you run this charge? Do you need a formal notice from CES on assignment? Have you received one yet? Secondly, we probably need paper in place to formalize our position assuming the mass market portion of the agreements referenced above.

I may be hard to get a hold of today, but would be available first thing Monday morning to discuss. Let me know what's available on your schedule. Thanks

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